

24VECV03093 24VECV03093

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-08-24

Motion: PLAINTIFF'S MOTION FOR ATTORNEYS' FEES, COSTS, AND EXPENSES

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Case Number: 24VECV03093 Hearing Date: August 24, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST
DISTRICT

DANILO C DAVID, an individual

Plaintiff,

vs.

VOLKSWAGEN GROUP OF AMERICA, INC., a Delaware corporation;
WINN VOLKSWAGEN, a California business entity; and DOES 1-10, inclusive,

Defendants.

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This case is a lemon law action. On June 27, 2024, Plaintiff Danilo C David ("Plaintiff") filed his complaint against Defendants Volkswagen Group of America, Inc. ("VGA" or "Defendant") and Winn Volkswagen ("Winn"), and Does 1-10, alleging: (1) violation of Civil Code section 1793.2 (d) against VGA; (2) violation of Civil Code section 1793.2 (b) against VGA; (3) violation of Civil Code section 1793.2 (a)(3) against VGA; (4) breach of the implied warranty of merchantability against VGA; and (5) negligent repair against Winn.

On November 25,
2025, Plaintiff filed his notice of settlement of the entire case.

On January 26, 2026, the instant matter was dismissed
without prejudice pursuant to Code of Civil Procedure section 664.6,
subdivisions (e) and (f), with the Court retaining jurisdiction to enforce
terms of settlement. (See 1/26/26 Minute Order.)

On February 10, 2026, Plaintiff filed the instant motion
for attorneys' fees, costs, and expenses.

On July 29, 2026, Defendant filed its opposition.

As of August 18, 2026, no reply has been filed.

B. RULING

Plaintiff's motion for attorneys' fees
is GRANTED IN PART.

The Court awards Plaintiff's counsel
the reduced amount of \$26,410.50 for attorneys' fees.

C. REQUEST FOR JUDICIAL NOTICE

Plaintiff requests
judicial notice be taken of several judicial orders on attorneys' fees, costs,
and expenses in and around the Los Angeles Area, pursuant to Evidence Code
sections 452 and 453. (See Plaintiff's
RJN, pp. 1-6.)

Evidence Code
section 452 allows courts to take judicial notice of "[r]ecords of (1) any
court of this state or (2) any court of record of the United States or of any
state of the United States." (Evid. Code, § 452, subd. (d).) Therefore, Plaintiff's request is granted.

D. EVIDENTIARY OBJECTIONS

Defendant submits

36 evidentiary objections to Plaintiff's request for judicial notice. Defendant's evidentiary objections Nos. 1-36 are overruled.

Plaintiff submits

2 evidentiary objections to the Declaration of Alexander Y. Kim in support of Defendant's opposition. Plaintiff's evidentiary objections Nos. 1-2 are overruled.

E. LEGAL STANDARD

If a

buyer-plaintiff prevails in an action under Civil Code section 1794, "the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)

The party seeking

fees and costs bears the burden to show "the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Nightingale v. Hyundai Motor America (1994) 31

Cal.App.4th 99, 104.) To satisfy this

burden, evidence and descriptions of billable tasks must be presented in sufficient detail, enabling the court to evaluate whether the case was overstaffed, the time attorneys spent on specific claims, and the reasonableness of the hours expended. (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 486-487.)

"A trial court

assessing attorney fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney... involved in the presentation of the case.' (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. [Citation.] The court may also

consider whether the amount requested is based upon unnecessary or duplicative work. [Citation.]” (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

F. DISCUSSION

Plaintiff moves the court for an order awarding attorneys’ fees, costs, and expenses in his favor, to be paid by Defendant, in the total amount of \$49,153.43, consisting of (1) \$28,262.50 in attorney fees; (2) a 1.35 multiplier enhancement of \$9,891.88; (3) \$7,499.05 in costs and expenses, and (4) \$3,500.00 for Plaintiff’s counsel to review Defendant’s opposition, draft a reply, and attend the hearing. (Mot., p. 2.)

As a preliminary matter, the Court reduces Plaintiff’s requested total amount by \$3,500.00. “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended.” (Civ. Code, § 1794, subd. (d).) Anticipated fees are not “based on actual time expended.”

1. Prevailing Party

First, the Court finds—and Defendant does not dispute—that Plaintiff is entitled to recover attorneys’ fees from Defendant pursuant to the Song-Beverly Act and the parties’ settlement. (Chandy Decl., ¶ 40, Ex. 3; Civ. Code, § 1794, subd. (d).)

Accordingly, Plaintiff is the prevailing party and thus entitled to attorneys’ fees and costs.

2. Reasonableness of Hourly Rates

A “reasonable” hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexler (2000)

This case was

staffed by fifteen attorneys and nine law clerks. (Chandy Decl., pp. 6-23.) The hourly rates for the attorneys are as follows: (1) \$650/hour for Angel Baker; (2) \$345/hour for Tori Boyce; (3) \$595/hour for Tionna Carvalho; (4) \$435/hour for Dhara Chandy ("Chandy"); (5) \$345/hour for Aylana Dias; (6) \$375/hour for Zachary Hutsell; (7) \$575/hour for Regina Liou; (8) \$550/hour for Jacob Lister; (9) \$435/hour for Hunter McMillan; (10) \$400/hour for Andres Roldan; (11) \$475/hour for Nino Sanaia; (12) \$595/hour for Aimee Stern; (13) \$450/hour for Rosy Stoliker; (14) \$425/hour for Kenneth Tate; and (15) \$610/hour for Sanam Vazairi. The hourly rates for the law clerks are as follows: (1) \$345/hour for Benjamin Basire; (2) \$195/hour for Aniket Bawankar; (3) \$285/hour for Rodney Boulware; (4) \$195/hour for Aditi Sharma; (5) \$345/hour for Yevgeniya Skovinskaya; (6) \$370/hour for Yenok Tantanyan; (7) \$195/hour for Smriti Thakur; (8) \$345/hour for Nastassia Tiangco; and (9) \$345/hour for Jorge Tole. (Chandy Decl., pp. 6-23, Ex. 1.)

In opposition,

Defendant argues the hourly rates sought by Plaintiff's counsel lack support and are excessive, given the instant matter is a run of the mill lemon law case, the limited nature, and the volume of work purportedly performed in this case. (Opp., p. 14.) Further, Defendant argues the Chandy declaration is insufficient to establish or justify the reasonableness of the hourly rates. (Opp., p. 14.)

Chandy attests to

the reasonableness of her colleagues' respective hourly rates. For each attorney, Chandy declares that the attorney's rate "is reasonable and with the range of rates approved by other California courts for attorneys with similar levels of experience at SLP." (Chandy Decl., pp. 6-23.) For each law clerk, Chandy declares the law clerk's rate "is reasonable and consistent with approved rates throughout California." (Id.) Chandy also cites to various judicial orders in or around Los Angeles County where Plaintiff's counsel's rates, or comparable hourly rates, were accepted by the court, with specific rates listed. (Id. .) Additionally, Chandy attests to the experience and expertise of various attorneys and law clerks who worked on Plaintiff's case. (Id.)

Chandy's

Declaration demonstrates that Plaintiff's counsel's rates are within the range

of reasonable rates for the Los Angeles County area in lemon law cases. Accordingly, the Court approves the hourly rates charged by Plaintiff's attorneys.

3. Reasonableness of Hours Claimed

Plaintiff claims a total of 68.2 hours of attorney and law clerk time on this matter. Mr. Hutsell expended 12.6 hours, Mr. Tate expended 11 hours, Ms. Dias expended 8.7 hours, Mr. Sanaia expended 5.9 hours, Mr. Lister expended 4.1 hours, Mr. Tantanyan expended 3.5 hours, Ms. Liou expended 3.1 hours, Mr. Tole expended 2.6 hours, Mr. Thakur expended 2.5 hours, Ms. Carvalho expended 2.2 hours, Ms. Boyce and Ms. Stern each expended 2 hours, Ms. Tiangco expended 1.7 hours, and Ms. Chandy expended 1 hour. (Chandy Decl., Ex. 1.) Mr. Baker, Mr. Basire, Mr. Bawankar, Mr. Boulware, Mr. McMillan, Mr. Roldan, Mr. Sharma, Ms. Skovinskaya, Ms. Stoliker, and Mr. Vazairi each expended less than one hour. (Chandy Decl., Ex. 1.)

Defendant argues the time claimed is unreasonable, as Plaintiff's counsel relied on boilerplate pleadings and discovery templates. (Opp., p. 16.)

a. Unjustified billing

Defendant opposes the 0.9 hours claimed for attending the motion for summary judgment hearing, since the hearing never occurred as the Court adopted the uncontested tentative ruling. (Opp., p. 16.) Additionally, Defendant argues the Court should strike 9.8 hours from counsel's billing of the motion for summary judgment, as Defendant was ultimately granted the summary judgment. (Opp., p. 16.) Defendant further opposes the billing for the October 28, 2025, mediation and March 4, 2025, case management conference, arguing Plaintiff overbilled the time by approximately 3.5 hours for the mediation and 2 hours for the CMC. (Opp., p. 17.) Defendant argues Plaintiff inflated billing by having three separate attorneys draft standard boilerplate template discovery. (Opp., p. 18.)

First, the Court

disagrees with Defendant's claim that the motion for summary judgment hearing never occurred, as the September 18, 2025, Minute Order states the matter was called for hearing. (See 9/18/25 Minute Order.)

The Court therefore declines to reduce the hours claimed preparing for and attending the hearing. Additionally, the Court declines to reduce the hours claimed regarding the motion for summary judgment.

Next, while

Defendant contends the mediation and case management conference took significantly less time than what was billed by Plaintiff, Defendant offers no evidence of how long these two meetings took place.

A verified fee

bill is prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) Thus, the burden shifts to

Defendant to present specific objections to particular time entries by "providing specific evidence necessary to challenge the accuracy and reasonableness of the hours charged."

(Ibid; see also Premier Medical Management Systems,

Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550,

563-564 ["In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice."].)

Accordingly,

Defendant has not met its burden to provide evidence to challenge the accuracy of the time billed for the mediation and case management conference. The Court does not find the hours billed excessive and thus declines to reduce the hours claimed for the October 28, 2025, mediation and the March 4, 2025, case management conference.

Finally, upon

reviewing Plaintiff's counsel's billing records, the Court does not find duplicative billing entries.

b. Discovery

billing

Defendant contends

Plaintiff overbilled by 12 hours to prepare for Defendant's and Plaintiff's depositions. (Opp., p. 18.)

Here, as discussed

above, Plaintiff's billing records are prima facie evidence that the fees were necessarily incurred. (See Hadley, supra, at p. 682.) Defendant

argues it is difficult to ascertain exactly how counsel spent 15.4 hours

preparing for Plaintiff's deposition and Defendant's PMK's deposition. (Opp., p. 18.) Defendant does not present specific evidence

to challenge the accuracy of the hours charged.

However, most of the hours are claimed regarding Plaintiff's deposition

are by Mr. Tate. Mr. Tate bills 7.7

hours for the preparation and taking of Plaintiff's deposition. The Court finds

this amount excessive due to Mr. Tate's experience. The Court therefore reduces

Mr. Tate's claimed hours by 3.2 hours.

c. Excessive

billing

Defendant argues

excessive billing for drafting standard boilerplate pleadings like the "Joint

Stipulation and Protective Order," and the proposed joint stipulation to

continue trial. (Opp., pp. 18-19.) Defendant further argues Plaintiff's

counsel's billing for drafting motions in limine on November 18, 2025, the date

Defendant issued its 998 offer, should be stricken. (Opp., p. 19.)

Defendant does not

present specific evidence to challenge the accuracy of the hours charged. However, the Court finds the hours claimed excessive for drafting the "Joint Stipulation and Protective Order," and the proposed joint stipulation to continue trial, which are boilerplate filings.

Accordingly, Mr.

Tole's claimed hours are reduced by 0.6 hours and Mr. Sanaia's hours are reduced by 0.6 hours.

Defendant does not

present specific evidence to challenge the accuracy of Plaintiff's billing regarding the motions in limine. The Court does not find these billing entries unreasonable, and thus declines to reduce the claimed hours.

d. Billing
for the instant motion

Defendant argues the 4.4 hours billed drafting the instant motion should be reduced, as the motion is almost identical to previously filed motions for attorneys' fees from other matters. (Opp., p. 19.) The Court appreciates the realities of high-volume, formulaic lemon law practice. However, the Court cannot presume, based on similar filings in other cases, that counsel did not perform work in this one. The Court declines to make the assumption that counsel's work is templated or to adjust counsel's hours accordingly.

4. Multiplier

Plaintiff requests a multiplier of 1.35. (Mot., p. 9.) Plaintiff argues a multiplier is warranted, based on the excellent outcome obtained and the contingent nature of the matter. (Mot., pp. 9-10.)

In opposition, Defendant argues a multiplier is not warranted, as this is a routine lemon law case involving no difficult or novel issues. (Opp., p. 23.) Further, Defendant argues a negative multiplier is warranted due to Plaintiff's over-litigation of this matter. (Opp., p. 24.)

A lodestar multiplier is an accepted and common practice in cases where counsel works on a "pure contingent basis" due to the "risks associated with the case." (See *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1399.) The factors that courts look at to determine if a multiplier is reasonable are: "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.)

Here, there is no evidence that this case involved any novel issues or required exceptional skill. Thus, there is no basis for a multiplier.

Accordingly, Plaintiff's request for a multiplier is denied. The Court declines to impose a negative multiplier.

5. Costs

Plaintiff seeks \$7,499.05 in costs and expenses. (Chandy Decl., ¶ 2, Ex. 1.) Plaintiff contends these costs and expenses were reasonable and necessary to prosecute Plaintiff's claims. (Mot., pp. 10-11.)

In opposition, Defendant argues Plaintiff failed to meet his burden of establishing costs by failing to file a separate memorandum of costs. (Opp., pp. 20-21.) Defendant further argues Plaintiff's requested costs are unjustified. (Opp., p. 21.)

To obtain a costs award, a party must serve and file a memorandum of costs. (C.R.C. Rule 3.1700(a).) Plaintiff failed to submit a memorandum of costs. Accordingly, the Court cannot award Plaintiff's request for costs on this motion.

G. CONCLUSION

Plaintiff's motion for attorneys' fees is GRANTED IN PART.

The Court awards Plaintiff's counsel the reduced amount of \$26,410.50 for attorneys' fees.

Plaintiff's request for a 1.35 multiplier, costs and expenses, and anticipated attorney work reviewing Defendant's opposition, drafting a reply, and attending the hearing is denied.

Plaintiff is ORDERED to give notice.

DATED: August 24, 2026

Lee S. Arian

Judge of the
Superior Court